

charge. Here the ordinary rules of construction apply, and “eldest” is taken to mean the eldest actually, and “younger” to mean the younger actually (*a*), and the time for ascertaining who is eldest and who are younger is not the period of *distribution* but the period of *vesting*.

Thus in *Adams v. Adams* (*b*) Sir W. Curtis, the father of Emma Adams, bequeathed 6,000*l.* to trustees in trust for Emma Adams for life, and after her decease “in trust for the children born or to be born of Emma Adams, who not being an eldest or only son for the time being,” should as to sons attain twenty-one, or as to daughters attain twenty-one or marry, in equal shares. Emma Adams died in 1857, and there were eight children. Henry William the eldest attained the age of twenty-one in 1826, and died in 1854, in the lifetime of his mother. George the second son attained twenty-one in 1828, and at the death of his mother was the eldest son. The question was whether the words “eldest son” meant eldest at the time of the first portion vesting, or eldest at the time of its falling into possession; that is, whether George was or not entitled to a share. The M. R. adopted the principle laid down by Sir T. Plumer, viz., that there cannot be two periods, one for ascertaining who compose the class to take, and the other for ascertaining who are to be excluded (*c*); and that as George was not the eldest son when he attained twenty-one, he took a vested interest, and that the interest being once vested there was nothing to divest it, except to a limited extent by the attainment of vested interests by the other younger children.

2. **Exceptions.** — To the general rule that the eldest son in these cases is to be ascertained not at the time of *distribution* but at the time of *vesting*, there may be exceptions as in *Livesey v. Livesey* (*d*), with reference to which the M. R. observed, “a testator *may* say ‘I do not intend any child to take a share unless at the period of distribution he shall ful-

[(*a*) *Domville v. Winnington*, 26 Ch. D. 382.]

try, 15 L. R. Ir. 101.] But see *Re Rivers' Settlement*, 40 L. J. N. S. Ch. 87.

(*b*) 25 Beav. 652; *Matthews v. Paul*, 3 Sw. 328; *Lyddon v. Ellison*, 19 Beav. 565; [*Domville v. Winnington*, 26 Ch. D. 382; *Longfield v. Ban-*

(*c*) *Matthews v. Paul*, 3 Sw. 328.
(*d*) 13 Sim. 33; 2 H. L. Ca. 419.